



File No.: EXP202308752

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On July 12, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against CLIDEA DESARROLLO, S.A. (hereinafter, the respondent), through the Agreement that is transcribed:

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File No.: EXP202308752

AGREEMENT TO INITIATE SANCTIONING PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on May 11, 2023. The complaint is directed against CLIDEA DESARROLLO, S.A. with NIF A83726190. The reasons for the complaint are as follows:

Complaint related to the sending of an email dated 8/5/23 sent to a plurality of recipients (in total, according to the affected party, 349 people, all of whom are, in principle, individuals working as "freelancers" for the respondent) without using the blind copy functionality, so that the addresses of the recipients are visible to all of them. The personal data revealed is the email address, many of which are composed of the name and surname of the interested party.

Along with the notification, a screenshot of the email with the plurality of recipients without the blind copy function and a screenshot of the respondent's email apologizing for the error made in the previous email are provided.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to CLIDEA DESARROLLO, S.A. for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on June 26, 2023, as evidenced by the acknowledgment of receipt in the file.

No response has been received to this forwarding.

THIRD: On August 11, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: According to the report obtained from the AXESOR tool, the entity CLIDEA DESARROLLO, S.A. is a small company established in 2003, with a business volume of 146,977 euros in 2022.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In this case, it is established that CLIDEA DESARROLLO, S.A. has carried out the processing of

personal data in its business activity, as defined in Article 4.2 of the GDPR, consisting of using the email addresses of a plurality of recipients without utilizing the blind copy functionality.

"processing": any operation or set of operations performed on personal data or sets of personal data, whether by automated means or otherwise.

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automated or not, such as collection, recording, organization, structuring, storage, adaptation or modification, extraction, consultation, use, communication by transmission, dissemination, or any other form of enabling access, comparison or interconnection, limitation, suppression, or destruction;

CLIDEA DESARROLLO, S.A. carries out this activity in its capacity as data controller, as it is the entity that determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR:

"data controller" or "controller": the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; if Union or Member State law determines the purposes and means of processing, the controller or the specific criteria for its appointment may be established by Union or Member State law.

III

Breach of Obligation

The known facts could constitute an infringement attributable to CLIDEA DESARROLLO, S.A. for non-compliance with the provisions of Articles 5.1(f) and 32 of the GDPR.

IV

Article 5.1(f) of the GDPR

Article 5.1(f) "Principles relating to processing" of the GDPR states:

"1. Personal data shall be:

f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, using appropriate technical or organizational measures ('integrity and confidentiality')."

This principle assigns to CLIDEA DESARROLLO, S.A., as the data controller, the obligation to prevent unauthorized or unlawful processing of this data, its loss, or destruction. Therefore, it should not process personal data if it is not in a position to guarantee the confidentiality and integrity of such data and prevent a third party from accessing data that does not concern them, as well as to avoid its loss or destruction. The data controller is obliged to process personal data in such a way as to ensure its confidentiality through the application of appropriate technical or organizational measures. For a breach of Article 5.1(f) of the GDPR to occur, there must have been a loss of confidentiality or integrity.

In this case, the documentation in the file provides indications of a presumed breach by CLIDEA DESARROLLO, S.A. of the provisions of Article 5.1(f) of the GDPR, due to a lack of confidentiality in the processing of personal data, as a result of sending an email with the recipients' addresses visible to all of them. The principle of confidentiality aims to prevent unauthorized leaks of personal data not consented to by the data subjects.

Therefore, in accordance with the evidence available at this moment in the initiation agreement of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the known facts could constitute an infringement attributable to CLIDEA DESARROLLO, S.A. for violation of Article 5.1(f) of the GDPR.

V

Classification and Qualification of the Infringement of Article 5.1(f) of the GDPR

The violation of Article 5.1(f) of the GDPR could constitute the commission of the infringement classified in Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" provides (the underlining is ours):

"Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to 4% of the total annual global turnover of the preceding financial year, whichever is higher:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9."

In this regard, the LOPDGDD, in its Article 71 "Infringements" establishes that:

"Acts and conduct referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

For the purposes of the limitation period, Article 72 "Infringements considered very serious" of the LOPDGDD indicates:

"1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, infringements that constitute a substantial violation of the articles mentioned therein shall be considered very serious and shall be subject to a limitation period of three years, particularly the following:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679. (...)"

VI

Article 32 of the GDPR

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Article 32 "Security of Processing" of the GDPR establishes:

"1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the varying probability and severity of risks to the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

a) the pseudonymization and encryption of personal data;

b) the ability to ensure the confidentiality, integrity, availability, and permanent resilience of processing systems and services;

c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;

d) a process for regularly verifying, assessing, and evaluating the effectiveness of the technical and organizational measures to ensure the security of processing.

2. In assessing the appropriateness of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a consequence of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this Article.

4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data may only process such data on instructions from the controller, unless required to do so by Union or Member State law."

It should be noted that the GDPR in the aforementioned provision does not establish a list of security measures applicable according to the data being processed, but rather states that the controller and the processor shall implement appropriate technical and organizational measures to ensure the

security of the data that are adequate to the risk posed by the processing, taking into account the state of the art, the costs of implementation, the nature, scope, context, and purposes of the processing, and the probability and severity of risks to the rights and freedoms of the data subjects.

Furthermore, the security measures must be adequate and proportional to the identified risk, indicating that the determination of technical and organizational measures should be made taking into account: pseudonymization and encryption, the ability to ensure confidentiality, integrity, availability, and resilience, the ability to restore availability and access to data after an incident, and a process of verification (which is not an audit), assessment, and evaluation of the effectiveness of the measures.

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measures. In any case, when assessing the adequacy of the level of security, particular attention will be paid to the risks presented by the processing of data, such as the destruction, loss, or accidental or unlawful alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data that could cause physical, material, or immaterial harm.

In the case at hand, CLIDEA DESARROLLO, S.A. did not use the procedure for sending emails when addressed to multiple recipients, which consists of using the option provided by the email application through the field known as "blind carbon copy" (BCC), allowing each recipient to see the rest of the sending addresses; and, therefore, violating the current regulations on data protection.

Consequently, CLIDEA DESARROLLO, S.A. did not have adequate measures in place to ensure the confidentiality, integrity, and availability of the systems and services of the processing.

Therefore, and in accordance with the evidence available at this time regarding the initiation of the sanctioning procedure, it is considered that the known facts could constitute an infringement attributable to CLIDEA DESARROLLO, S.A., for violation of Article 32 of the GDPR.

VII

Classification and qualification of the infringement of Article 32 of the GDPR

The violation of Article 32 of the GDPR is classified in Article 83.4.a) of the aforementioned GDPR in the following terms:

"4. Infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 10,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 2% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43."

In this regard, the LOPDGDD, in its Article 71 "Infringements" establishes that "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

For the purposes of the statute of limitations, Article 73 "Infringements considered serious" of the LOPDGDD indicates:

"Based on what is established in Article 83.4 of Regulation (EU) 2016/679, the following are considered serious and shall be subject to a two-year statute of limitations for infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

f) The failure to adopt those technical and organizational measures that are appropriate to ensure a level of security adequate to the risk of processing, as required by Article 32.1 of Regulation (EU) 2016/679." (...)

VIII

Proposal for sanction for the infringements of Articles 5.1.f) and 32 of the GDPR

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

"1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 is, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for those contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage and harm they have suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damage and harm suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have applied under Articles 25 and 32;
- e) any previous infringement committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, compliance with those measures;

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j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42,

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

For its part, Article 76 “Sanctions and corrective measures” of the LOPDGDD states:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The link between the infringer's activity and the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.”

In this case, in light of the possible infringement of Articles 5.1 f) and 32 of the GDPR, the imposition of a fine would be appropriate, in addition to the adoption of measures, if applicable. The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR.

According to the indicated provisions, in accordance with the evidence available at this moment regarding the initiation of sanctioning proceedings and without prejudice to the outcome of the instruction of the procedure, for the purpose of determining the amount of the sanctions to be imposed

in this case, it is considered appropriate to graduate the sanctions according to the following criteria established by the transcribed provisions:

In an initial assessment, the following circumstances are considered for the graduation of the fine:

- Art. 5.1.f)

Article 83.2.a) of the GDPR: It is considered that the nature of the infringement is serious since it has resulted in an irreparable loss of disposition and control over personal data for the affected parties and due to the number of affected parties, which is estimated to be around 350 recipients of emails.

- Art. 32 GDPR:

Art. 83.2.b GDPR: due to negligence in the infringement, given that every data controller must be aware of their duty to implement adequate technical and organizational measures to protect the security and confidentiality of the personal data they process.

Considering the factors presented, the initial assessment of the fine for the infringement of Article 5.1.f) of the GDPR is €2,000 (TWO THOUSAND euros) and for the infringement of Article 32 of the GDPR is €1,000 (ONE THOUSAND euros), without prejudice to the outcome of the instruction of the procedure. The total amount is €3,000 (THREE THOUSAND euros).

V

Adoption of measures

If the infringement is confirmed, it may be agreed to impose on the controller the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, when appropriate, in a specified manner and within a specified time frame...". The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

In the present case, in the resolution that is adopted, the controller may be required to adopt the appropriate technical and organizational measures within one month to prevent the sending of emails to multiple recipients in which all their email addresses are displayed.

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which may lead to the opening of further administrative sanctioning proceedings.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,

IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEEDINGS against CLIDEA DESARROLLO, S.A., with NIF A83726190, for the alleged infringement of Article 5.1.f) of the GDPR and Article 32 of the GDPR, classified under Article 83.5.a) of the GDPR and Article 83.4.a) of the GDPR.

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SECOND: TO APPOINT R.R.R. as the instructor and S.S.S. as the secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the claim filed by the claiming party and its documentation, as well as the documents obtained and generated by the General Subdirector of Data Inspection in the proceedings prior to the initiation of the present sanctioning procedure.

FOURTH: THAT for the purposes provided in art. 64.2 b) of the LPACAP, the sanction that may correspond would be: without prejudice to what results from the instruction.

- For the alleged infringement of article 5.1.f) of the GDPR, classified in article 83.5.a) of said regulation, an administrative fine of 2,000 € (TWO THOUSAND euros).

- For the alleged infringement of article 32 of the GDPR, classified in article 83.4.a) of said regulation,

an administrative fine of 1,000 € (ONE THOUSAND euros).

The above amounts to a total of 3,000 € (THREE THOUSAND euros).

FIFTH: TO NOTIFY this agreement to CLIDEA DESARROLLO, S.A., with NIF A83726190, granting a hearing period of ten working days for it to submit allegations and present any evidence it deems appropriate. In its allegations document, it must provide its NIF and the file number that appears in the heading of this document.

If no allegations are made against this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in article 64.2.f) of the LPACAP.

In accordance with the provisions of article 85 of the LPACAP, it may acknowledge its responsibility within the period granted for the formulation of allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that may be imposed in the present procedure. With the application of this reduction, the sanction would be set at 2,400 € (TWO THOUSAND FOUR HUNDRED euros), resolving the procedure with the imposition of this sanction.

Similarly, it may, at any time prior to the resolution of the present procedure, make voluntary payment of the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at 2,400 € (TWO THOUSAND FOUR HUNDRED euros), and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution.

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In this case, if both reductions were to be applied, the amount of the fine would be set at €1,800 (ONE THOUSAND EIGHT HUNDRED euros).

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative pathway against the fine. For these purposes, in the event of opting for either of them, you must send to the Sub-Directorate General of Data Inspection an express communication of the withdrawal or renunciation of any action or appeal in the administrative pathway against the fine.

In the event that you choose to proceed with the voluntary payment of either of the amounts indicated above (€2,400 or €1,800), you must make the payment by depositing it into account no. IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are adhering.

Additionally, you must send the proof of payment to the Sub-Directorate General of Inspection along with the communication of the withdrawal or renunciation of any action or appeal in the administrative pathway against the fine to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. If this period elapses without a resolution being issued and notified, it will result in its expiration and, consequently, the filing of actions; in accordance with the provisions of Article 64 of the LOPDGDD.

In compliance with Articles 14, 41, and 43 of the LPACAP, it is warned that, henceforth, the notifications sent to you will be made exclusively electronically, through the Single Enabled Electronic Address (dehu.redsara.es), and that, if you do not access them, your rejection will be noted in the file, considering the procedure to have been carried out and continuing with the process. You are informed that you can identify an email address to this Agency to receive the notice of availability of notifications

and that the lack of practice of this notice will not prevent the notification from being considered fully valid.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

Mar España Martí

Director of the Spanish Agency for Data Protection

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SECOND: On August 10, 2024, the respondent has proceeded to pay the fine in the amount of €1,800 making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

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THIRD: The payment made, within the period granted to submit allegations to the opening of the procedure, entails the renunciation of any action or appeal in the administrative pathway against the fine and the acknowledgment of responsibility regarding the facts referred to in the Initiation Agreement.

FOURTH: In the previously transcribed Initiation Agreement, it was indicated that, if the infringement were confirmed, measures could be imposed on the responsible party to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...”.

Having acknowledged the responsibility for the infringement, the imposition of the measures included in the Initiation Agreement is appropriate.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: “The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, insofar as they do not contradict them, by the general rules on administrative procedures in a subsidiary manner.”

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading “Termination in sanctioning procedures” provides as follows:

“1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another of a non-pecuniary nature but the justification has been provided...”

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In the event of the inadmissibility of the second, voluntary payment by the alleged responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which are cumulative. The aforementioned reductions must be specified in the notification of the initiation of the procedure, and their effectiveness will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided in this section may be increased by regulation.

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202308752, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO ORDER CLIDEA DESARROLLO, S.A. to notify the Agency of the adoption of the measures described in the legal grounds of the Agreement of initiation transcribed in this resolution, within 1 month from the date this resolution becomes firm and enforceable.

THIRD: TO NOTIFY this resolution to CLIDEA DESARROLLO, S.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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